CHAPTER 36 Tribunals

The original Constitution did not contain provisions with respect to tribunals. The 42nd Amendment Act of 1976 added a new Part XIV-A to the Constitution. This part is entitled as 'Tribunals' and consists of only two Articles—Article 323A dealing with administrative tribunals and Article 323B dealing with tribunals for other matters.

ADMINISTRATIVE TRIBUNALS

Article 323A empowers the Parliament to provide for the establishment of administrative tribunals for the adjudication of disputes relating to recruitment and conditions of service of persons appointed to public services of the Centre, the states, local bodies, public corporations and other public authorities. In other words, Article 323A enables the Parliament to take out the adjudication of disputes relating to service matters from the civil courts and the high courts and place it before the administrative tribunals.

In pursuance of Article 323A, the Parliament has passed the Administrative Tribunals Act in 1985. The act authorises the Central government to establish one Central administrative tribunal and the state administrative tribunals. This act opened a new chapter in the sphere of providing speedy and inexpensive justice to the aggrieved public servants.

 **Central Administrative Tribunal (CAT)**

The Central Administrative Tribunal (CAT) was set up in 1985 with the principal bench at New Delhi and additional benches in different states. At present, it has 19 regular benches, 17 of which operate at the principal seats of high courts and the remaining two at Jaipur and Lucknow. These benches also hold circuit sittings at other seats of high courts.

The name and jurisdiction of Benches of CAT are given in Table 36.1. Similarly, the details of circuit sittings of Benches of CAT are given in Table 36.2.

The CAT exercises original jurisdiction in relation to recruitment and all service matters of public servants covered by it. Its jurisdiction extends to the All-India Services, the Central civil services, civil posts under the Centre and civilian employees of defence services. However, the members of the defence forces, officers and servants of the Supreme Court and the secretarial staff of the Parliament are not covered by it.



The CAT is a multi-member body consisting of a Chairman and Members. Originally, the CAT consisted of a Chairman, Vice-Chairman and Members. Later, in 2006, the provision for the Vice-Chairman was removed by the Administrative Tribunals (Amendment) Act, 2006. Hence, there is now no Vice-Chairman in the CAT. At present, the sanctioned strength of the Chairman is one and sanctioned strength of the Members is 69. They are drawn from both judicial and administrative streams. But, a person who has not